

		<i>Assoc. of Cal. Water Agencies Joint Powers Ins. Authority</i> (2004) 34 Cal.4th 441, 447.) “The claim, however, need not specify each particular act or omission later proven to have caused the injury. [Citation.] A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an ‘entirely different set of facts.’ ” (<i>Ibid.</i>) The City’s request for judicial notice of Plaintiff’s tort claim is GRANTED. (Evid. Code, § 452(h).) Plaintiff’s tort claim states that Plaintiff was struck due to the unsafe design of the roadway and/or intersection at McFadden Avenue and Gates Street and that the location lacked appropriate traffic control devices of pedestrians. It further states that the geometry of the roadway, curvature of the roadway, lack of warning, inadequate lighting, and inability to see other vehicles and pedestrians were physical features of the location which made it dangerous and the roadway created a trap for motorists and pedestrians. Despite the City’s contentions, the Court finds that the theory of a concealed trap is fairly reflected in Plaintiff’s written tort claim. Based on all the above, the demurrer to the SAC is OVERRULED in its entirety. Plaintiff to give notice.
2.	30-2025-01503814 Memory Lane Homeowners Association vs. Grace	1. Case Management Conference 2. Demurrer-Other Defendant Andrew Robert Grace (“Defendant”) demurs to the Complaint of plaintiff Memory Lane Homeowners Association (“Plaintiff”). As an initial matter, the Court notes that Defendant has not filed a meet and confer declaration as required under Code of Civil Procedure section 430.41. The Court further notes that Defendant has not filed any proof of service of the moving papers in violation of Cal. Rules of Court, rule 3.1300(c). Defendant is admonished that the failure to fully comply with all applicable statutes and rules in the future could result in a motion being taken off calendar or denied and the imposition of sanctions, if appropriate. The Court further notes that Plaintiff did oppose the demurrer, and served its opposition on Defendant, a self-represented litigant, by electronic service. Service upon a self-represented litigant by electronic service is only permitted when that party has served notice that the party accepts electronic service and filing the notice with the Court or manifested affirmative consent through electronic means with the Court or the Court’s electronic filing service provider. (Code Civ. Proc., § 1010.6(c); Cal. Rules of Court, rule 2.251(b)(1).) There are no filings showing that Defendant has consented to electronic service or manifested affirmative consent. Absent such consent, Defendant must be served by nonelectronic means. Defendant argues that the County of Orange has no jurisdiction over the property, Plaintiff has no claim or jurisdiction over the property, and Plaintiff’s counsel have no jurisdiction over the property. None of Defendant’s arguments raise a colorable argument that the Court has no jurisdiction over the subject matter of this action, which concerns real property located within this County. Thus, the demurrer on <u>lack of jurisdiction</u> grounds is OVERRULED. Defendant argues that the Complaint is uncertain because documents from the City of Aliso Viejo are not attached, incorrect portions of the subject CC&Rs are cited, no clear property line is stated,

		and the work was performed 22 months ago. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant’s argument does not show that the Complaint is so incomprehensible that Defendant cannot reasonably respond. Defendant further points out that no homeowner is listed as a Plaintiff. However, Plaintiff, as the homeowners association, has standing to enforce the CC&Rs and is a proper plaintiff. (Civ. Code, § 5975(a) [“servitudes may be enforced by any owner of a separate interest or by the association”].) Thus, the demurrer based on <u>uncertainty</u> is OVERRULED. Defendant argues that the Complaint fails to state facts sufficient to constitute a cause of action. However, Defendant does not assert any meritorious argument that the causes of action in the Complaint fail to state sufficient facts. Defendant does not discuss the elements of Plaintiff’s breach of the CC&Rs or declaratory relief causes of action or provide any argument as to how either cause of action is insufficiently pled. Thus, the demurrer based on <u>failure to state sufficient facts</u> is OVERRULED. Defendant argues the Complaint fails to state the contract type. However, the Complaint identifies the contract upon which Plaintiff sues to be the written CC&Rs, a copy of which is attached to the Complaint as Exhibit A. Thus, the demurrer based on the <u>failure to state whether the contract is written, oral, or implied</u> is OVERRULED. Lastly, Defendant contends that the projects at issue were completed 22 months ago and the statute of limitations has expired. However, the statute of limitations on an action for breach of an association’s CC&Rs is five years. (Code Civ. Proc., § 336(b).) Even if Defendant’s assertion that the work was completed 22 months ago were accepted as true, the Complaint would have been filed well within the applicable statute of limitations. Thus, the demurrer based on the <u>statute of limitations</u> is OVERRULED. <u>Defendant to file an Answer to the Complaint by June 11, 2026.</u> Plaintiff to give notice.
3.	30-2025-01476971 Audenis vs. Contractors State License Board	1. Case Management Conference 2. Demurrer-Other Respondent Contractors State License Board demurs to the First Amended Petition of Writ of Administrative Mandate on the grounds that (1) Petitioner does not have standing to pursue the causes of action alleged on behalf of the corporate licensees and (2) the First Amended Petition is generally uncertain and does not state facts sufficient to constitute the causes of action alleged. Petitioner Patrick Audenis (“Petitioner”), proceeding <i>in pro per</i>, opposed the demurrer. Petitioner argues that he has standing because Respondent is imposing disciplinary fines against Petitioner when such fines should be imposed against the corporate licensees. First Amended Petition of Writ of Administrative Mandate contains the following three causes of action: (1) violation of due process pursuant to Civil Code section 1094.5 and the 14th Amendment of the U.S. Constitution, (2) exceeding statutory authority/improper piercing of corporate veil pursuant to Code of Civil Procedure section 1085, Business and Professions Code section 7068, and 11 U.S.C § 524, and (3) government defamation/stigma plus pursuant to Code of Civil Procedure section 1094.5.